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[A Review of Quotas in University Admissions](#)

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on 10/04/2012 10/02/2012

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My good friend Somapala Gunadheera has made some thoughtful observations (*The Island*, 10 Sept 2012) on the problems of University admissions, and noted that in my “Tamil Language Rights in Sri Lanka” (CPA, April 2012) I had not suggested ways and means of solving them. My analysis and suggestions were expressed in some publications way back in the 90s, and that is why I chose not to repeat them. But since my friend has raised the question, I will (belatedly) retrace some of what I had written then, supplemented with an outline of the historical background.

Jaffna youth have traditionally depended on education for employment since other avenues have been lacking in comparison with other districts. Since Sinhala Only in 1956, Tamil speakers have had even more problems than previously in finding employment. They have responded with even greater focus on education and on acquiring superior academic and professional qualifications, especially in fields such as Medicine and Engineering in which such qualifications virtually guarantee employment. Thus the proportions of Tamil youth entering the Medical and Engineering university faculties progressively increased, posing political problems for the Government. In particular the intake from Jaffna, which has long had a disproportionate number of very good secondary schools was very high. The political problem came to a head in 1970-71, in the first year of the newly elected Srimavo Bandaranaike administration.

A hasty (and shortsighted and irrational) decision was taken by the Cabinet of Ministers to fix different pass marks to students of different ethnic groups so as to achieve an acceptable ethnic mix in University admissions in 1971. This was blatantly racist. Predictably, the impact on Sri Lankan Tamils was traumatic, and a small section of Tamil youth took to armed rebellion. This “solution” was also widely criticised by educationists at home and abroad. Modifications were therefore introduced in subsequent years, for intakes in those years, but those schemes were also defective and, in any case, the damage done could not be undone. It was first sought to give a veneer of pseudo respectability by introducing what was called “linguistic standardization” which was again ethnic discrimination but in disguise. No educational or egalitarian or affirmative action / reverse discrimination principle was served. What it did serve was to instigate a series of anti-Tamil pogroms culminating in a very bloody civil war which, with interruption, extended to 24 years (1985-2009), with a death toll of many tens of thousands, mostly of non-combatants.

Under “linguistic standardization”, Sinhalese (Sinhala medium) students of all socio economic classes and in all schools gained privileged admissions to Medical, Engineering and some other faculties at the expense of Tamil and Muslim (Tamil medium) students of all socio economic classes and in all schools. This scheme was just as racist as the 1971 scheme. It would be an obscene travesty to describe as affirmative action / reverse discrimination a scheme that gives a step up to the child of senior Sinhalese professionals in the Sinhalese stream at Royal or Visakha or Trinity over a Tamil or Muslim child of estate laborers or slum dwellers purely on the basis of language medium. Whereas under affirmative action / reverse discrimination the under privileged would get a step up over the privileged, under linguistic standardization, as in the above example the reverse may take place.

What is affirmative action / reverse discrimination? Its objective is to give a step up to the under privileged and/or the victims of discrimination with a view to compensate for the deprivation and/or discrimination. In India quota reservations are constitutionally prescribed for Untouchables/ Scheduled Castes, Scheduled Tribes and Other Backward Classes. For lack of space I will not spell out here the relevant sections of the Indian Constitution. In the USA preferences are mandated in the Civil Rights Act of 1964, which, however, does not expressly prescribe quotas nor identify the beneficiaries. In a landmark ruling the then Indian Chief Justice A. N. Ray affirmed that “Equality of opportunity for unequals can only mean aggravation of inequality. Equality of opportunity admits discrimination with reason” (State of Kerala v N.M.Thomas, 1976). In the USA, in a landmark judgment, Supreme Court Justice Harry A. Blackmun claimed that “... in order to treat some person equally we must treat them differently” (Bakke v Regents of California, 1978). These quotations, approvingly cited in my book “Discrimination with Reason? The Policy of Reservations in the United States, India and Malaysia”, Oxford University Press, 1997, set out the essence of affirmative action / reverse discrimination.

What Sri Lanka now has is District Quotas, also unsatisfactory in that it has no rational basis and is divisive on several counts, but an improvement on “linguistic standardization” in that it is not overtly racist. What has not been tried out is any solution based on affirmative action/ reverse discrimination. Those of Scheduled Castes and Other Backward Classes and Schedule Tribes in India, and Blacks, Hispanics, Native Americans and few other categories in the USA have claims to affirmative action /reverse discrimination to compensate for current discrimination as well as the cumulative impact of centuries of past discrimination. In Sri Lanka the major ethnic categories, with the possible exception of “Plantation Tamils”, cannot claim such benefits. Numerically smaller categories such as Veddahs, Rodiyas and a few “Untouchable” castes among Tamils may claim such benefits but these claims are not as compelling as those in India. There could be a case for reserving small numbers of places in Sri Lankan Universities for children of such categories. But in any case being located in “backward areas” cannot generate such claims unless such privileges are tied to agreements to return to those areas after graduation to teach in under privileged schools with the view to progressively erasing such backwardness. In effect, since there are privileged schools in every district and the elite of those districts send their children to those or other privileged schools elsewhere, it is they who benefit from quotas outside Colombo and Jaffna rather than the most backward in those districts. Thus District Quotas help the rural elite at the expense of the urban underclass. Moreover, the markup for some Districts is so high that within each class in the Universities the disparity between students is unduly large.

In India and the USA, a disproportionate share of affirmative action/ reverse discrimination benefits are appropriated by the elite of the disadvantaged communities. In fact those countries have attempted to exclude benefits from such elite by prescribing socio economic cut off criteria, but this proved to be cumbersome and unworkable. In India since the caste system continues to operate even among those converted to Christianity, they too enjoy quota benefits. But among Tribals, since converts to Christianity gain privileged access to good Christian schools, Christian Tribals were appropriating a disproportionate share of the Tribal quota benefits. For this and other reasons the Indian Supreme Court has ruled that the Tribals who convert to Christianity cease to be eligible for quota benefits.

Under the currently prevailing district quotas scheme, the under privileged everywhere in Sri Lanka suffer multiple disadvantages of socio economics backwardness, poor schooling as well as the bulk of the district quotas being appropriated by the privileged of those districts. Their situation is made worse by the fact that the children of the underclass to which they belong are virtually excluded from admission to “good schools” to which children of privileged classes find easy access.

It is not possible to compensate for all handicaps. Moreover, most handicaps are difficult to define in terms of objective criteria. For example, if the parents are illiterate or if the situation at home is not conducive to children advancing in their studies, those handicaps are real but not easily quantifiable in terms of objective criteria and are therefore difficult to compensate for. But one handicap that is both real and definable in objective terms is the quality of schooling. Perhaps quotas can be justified if they are based on objective criteria related to a measure of the quality of schooling. It is also conceivable to use socio-economic criteria, but these would be highly subjective, especially in countries like Sri Lanka where most people are in the unorganized sector in which even the rich escape paying income tax. Our scheme may need to depend solely on an objective grading of schools.

For example schools may be graded 1,2,3,4 and 5 on the basis of the average of the last three (or four) years of admissions to university faculties. The total of the marks scored by a student at the university entrance examinations can be increased by 10,20,30 and 40 respectively for those attending schools graded 2,3,4 and 5 respectively. This ranking could vary from faculty to faculty since some schools may be good in Maths science, others in Bio science, etc. The ranking may also change gradually from year to year as schools improve or decline in respect of each discipline. This scheme has several important advantages. The grading is objective, transparent and any student or parent can understand it. It also addresses real disparities (unlike district quotas and linguistic quotas) in a meaningful manner. Further, the step up a child receives is modest so that there is no glaring disparity within each university class as under the current district quotas scheme. Moreover, since the step up is modest the incentive for each school to upgrade itself is not undermined; nor is it likely to provoke a negative backlash of resentment. It is a scheme such as this that can successfully replace the district quotas scheme that now prevails. But a scheme such as this may not be acceptable to the elite outside Colombo and Jaffna among whom Ministers and Members of Parliament are well represented and who are well served by the district quotas scheme. Perhaps this is why the District Quotas Scheme continued to prevail despite the protests of the Colombo elite, who also enjoy some political clout, and of the Jaffna elite and the underclass everywhere, who remain powerless.

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